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Rep. Linda Sánchez, others push to keep pandemic-inspired restaurant expansions

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The La Palma restaurant Isla Cuban-Latin Kitchen & Rum Bar had been open for just seven months last spring when the coronavirus pandemic shut it down.

When outdoor dining was permitted to come back, owner Mauricio Diaz set up a tent in part of the parking lot to add 100 seats to his existing 40-seat patio — a move that saved the business.

"It was a lifeline," Diaz said Monday. "We wouldn't be here, open, if it wasn't for using that outdoor dining space."

But in June, when the state lifted capacity limits on indoor dining, Diaz got a letter from his landlord telling him he could no longer use the temporary outdoor dining space. Diaz called the demand "unfair," since he said his shopping center's large parking lot is never full, even with Isla's dining tent take up space. And with some customers telling Diaz they still aren't comfortable eating inside, he asked Rep. Linda Sánchez, D-Whitter, whose 38th District includes La Palma, for help.

Inspired by Diaz's situation, Sanchez and Minnesota Rep. Angie Craig are leading 18 of their fellow House Democrats in an effort to encourage states and cities to let restaurants keep outdoor seating in parking lots, sidewalks and streets "for the duration of the pandemic."

Toward that end, Sanchez and the others sent a letter to Treasury Secretary Janet Yellen seeking to link such restaurant expansions to a state or city's eligibility to receive Coronavirus State and Local Fiscal Recovery Funds, a $350 billion pot of money created in March when Congress passed the American Rescue Plan. The Treasury is reviewing comments on that program through fall before issuing a final rule.

"With some indoor seating still limited, and many people opting to only eat outdoors, the ability to use outdoor spaces for dining is literally keeping restaurants open," Sánchez said.

The restaurant industry employs more than 15 million people nationwide, notes the letter, which also was signed by Southern California Reps. Alan Lowenthal, Ted Lieu and Judy Chu. But more than 90,000 restaurants closed during the pandemic, and tens of thousands have scaled back their operations.

"As these restaurants work to get back on track, it is imperative they have access to this additional space," Sánchez said.

Unlike a related state law signed last month by Gov. Gavin Newsom, the Oct. 20 letter to Yellen does not include a time frame, or a health threshold, that would define the end of the pandemic.

Assembly Bill 61, from Assemblyman Jesse Gabriel, D-Encino, allows restaurants to continue to use temporary dining areas for up to a year after the governor declares an end to the pandemic so long as the restaurant has applied for a permit to permanently expand its footprint.

The League of California Cities supported that bill. But spokeswoman Kayla Woods said Monday that the organization hadn't yet reviewed the federal request made to Yellen.

The plan to tie federal relief funding to support for outdoor dining options drew quick support from coalitions supporting the restaurant industry.

"The data shows people remain hesitant to eat out, especially dining indoors," said Erika Polmar, executive director of the Independent Restaurant Coalition. "Outdoor dining has been a lifeline for neighborhood restaurants and now is not the time to take that away."

Diaz also applauded the request and thanked Sánchez for taking action after hearing his story.

After a successful opening in August 2019, Diaz said Isla Cuban-Latin Kitchen & Rum Bar was so busy during its first months that when the pandemic hit they hadn't had time to set up delivery operations with third-party vendors like Postmates or Uber Eats. During the first month of the spring 2020 lockdown the restaurant sold just $2,000 in takeout food, Diaz said, forcing him to lay off all but two staff members and to burn through all of the profit the restaurant had made since opening.

Diaz did receive a Paycheck Protection Program loan and local grants that helped pay for equipment needed for outdoor dining, such as a tent and heaters. But now he said they're left with that gear and demand for expanded outdoor space, but nowhere to put customers. The extra seats, he said, could help him recover from the tumultuous past 20 months.

"Being able to use this space again will be huge for us," Diaz said.

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